

In re: James Howard Lawler, Sr. and Betty Mae Lawler Living Trust, 25PR-0168

Hearing: Motion for Terminating Sanctions

Date: September 16, 2026

TENTATIVE RULING

On June 24, 2026, the Court granted Respondent's motions to compel responses to the first set of form interrogatories, special interrogatories and requests for production; ordered responses be served no later than July 8, 2026; deemed the first requests for admissions, admitted; and awarded sanctions of \$2,598.75 against Petitioner. Petitioner's counsel (Matthew O'Leary) was present at the June 24, 2026 hearing and confirmed he had reviewed the Court's tentative ruling.

On July 10, 2026, Respondent's counsel (Jonas Bailey) served a Notice of Ruling which attached the Court's adopted ruling. In addition, Mr. Bailey's office emailed Mr. O'Leary stating they had not yet received the discovery responses or sanctions payment. Mr. O'Leary did not respond to the email.

On calendar is Respondent's motion seeking terminating sanctions dismissing the petition with prejudice or striking it, or in the alternative, issue or evidentiary sanctions. (Code Civ. Proc., § 2023.030.) Respondent reports at the time of filing the present motion (July 28, 2026) no responses had been served.¹ Petitioner filed a late opposition reporting she served verified responses on September 9, 2026.

Respondent argues the responses to the form interrogatories are not verified and the discovery responses are incomplete. Any deficient responses can be addressed by a motion to compel further. As for the lack of verification of the form interrogatories, Petitioner should come prepared to provide a date by which to remedy that deficiency.

In addition, the Court notes it deemed the requests for admission, admitted in June 2026, and Petitioner's late responses to the requests for admission do not undermine that ruling. Deemed admissions may only be withdrawn or amended with leave of court. (Code Civ. Proc., § 2033.300.)

Similarly, the Court strikes any objections in the late responses because Petitioner waived objections by failing to timely reply. Relief from such a waiver requires a noticed motion. (Code Civ. Proc., §§ 2030.290(a) [interrogatories], 2031.300(a) [requests for production].)

¹ Respondent also reports the ordered monetary sanctions have not been paid. (See *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615 ["a terminating sanction issued *solely* because of a failure to pay a monetary discovery sanction is never justified"].) Such monetary sanctions "have the force and effect of a money judgment, and are immediately enforceable through execution." (*Ibid.*)

The Court denies the request for terminating, evidentiary, and issue sanctions, but grants Respondent's request for additional monetary sanctions of \$1,925. (Code Civ. Proc., §§ 2023.030(a), 2030.290(c), 2031.300(c).)

ORDER (PROPOSED)

Respondent's request for additional monetary sanctions of \$1,925 is granted. The remainder of the motion is denied.